



File No.: EXP202302924

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the complaining party) filed a complaint with the Spanish Agency for Data Protection on February 13, 2023. The complaint is directed against AYUNTAMIENTO DE TARTANEDO with NIF P1932000A (hereinafter, the complained party). The reasons for the complaint are as follows:

“(…) the complained municipality has installed various surveillance cameras throughout the municipality that record public roads, without any type of signage regarding this, also indicating that, according to the installer of the cameras, the mayor of the locality has direct access to the images from this system via his mobile phone (…).”

Images of the camera locations are provided (Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party on 07/03/23 and 25/04/23, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations. The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was notified to the address of the Town Hall as recorded in the administrative file.

THIRD: On August 21, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the complained party, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

FOURTH: On May 13, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complaining party was admitted for processing.

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FIFTH: After notifying the aforementioned initiation agreement in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), the complained party submitted a written statement in which, in summary, they expressed the following:

“LACK OF ACTIVE LEGITIMACY OF THE COMPLAINANT. Law 57/2003, of December 16, on measures for the modernization of local government states in its art. 18: (…).

The complainant maintains a situation of personal animosity towards the tenant of a municipal housing, specifically towards D. B.B.B. and his family, of Romanian origin, with continuous cross-complaints to which this Town Hall is absolutely foreign. This Town Hall is unaware if the animosity is due to reasons of bad neighborliness or possible racist motives. However, as we have said, we are absolutely foreign to them. For evidentiary purposes, we provide several documents sent to this Town Hall by residents of Hinojosa as documentary body 1 attached to this writing.

For some time now, and always coinciding with the periods when the complainant is in the locality of Hinojosa, there have been occasional acts of vandalism, even serious ones such as a fire in front of D. B.B.B.'s house, breakages of locks, deterioration of urban furniture, and graffiti on the walls. For this reason, and at the request of the residents of Hinojosa, some cameras were urgently installed, for deterrent purposes, but without any recording mechanism or data storage, until the corresponding

permissions are requested if the image storage system is eventually put into operation, which does not exist to date.

In short, the cameras were placed as a sign of an alarm connected in some homes, which in reality is not connected. No images are stored or archived, so no personal data has been obtained from the complainant and no violation of the aforementioned art. 13 in the writing received has occurred on the part of the Town Hall I represent.

I REQUEST that this writing be considered submitted with the document that accompanies it, for the allegations contained herein and, consequently, that the procedure be archived.”

SIXTH: On 22/09/23, a was issued in which it is considered that the allegations presented are insufficient to decree the archiving of the procedure, proposing the declaration of administrative infringement in the terms of Article 77.2º LOPDGDD, for failing to demonstrate the legality of the installed system.

SEVENTH: On 02/10/23, a written statement of allegations was received regarding the from the main responsible party of the Town Hall.

(...) that the cameras installed by the Town Hall, as was previously stated through a responsible declaration, the cameras placed in ***LOCALITY.1 are not operational, not allowing either vision or recording.

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image collection, as long as it is authorized by the Government Subdelegation, a procedure that is followed for the rest of the neighborhoods belonging to this City Council (***NEIGHBORHOODS.1). Attached on one side is the authorization from the Government Subdelegation that certifies the procedure being followed by this City Council in this regard.

On the other side, complaints submitted by residents of Hinojosa are attached, as well as a copy of the letter sent to the Civil Guard requesting a report on the cameras installed by the family of Mr. C.C.C., an act that violates Article 18 of the Constitution, which grants all citizens the right to privacy, causing an intrusion into such right.

Awaiting clarification of the matter and the annulment of the declaration of infringement, I remain sincerely yours.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

First. The facts arise from the complaint dated 13/02/23, which states the following:

“(...) the City Council in question has installed various surveillance cameras throughout the municipality that record public roads, without any type of signage regarding this, also indicating that, according to the installer of the cameras, the mayor of the locality has direct access to the images from this system via his mobile phone (...).”

Images showing the locations of the cameras are provided (Annex I).

Second. The main responsible party is the City Council of ***LOCALITY.1 with NIF P1932000A.

Third. The existence of a video surveillance camera system is established, although the responsible party claims it is not operational without providing documentary evidence to that effect.

The presence of the cameras is not denied, but the exact number and installation locations are not certified.

Fourth. It is not established that the cameras have been properly signposted, as they are in a non-operational state, but are visible to passersby and residents of the locality in public transit areas.

LEGAL GROUNDS

I

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In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Following the amendments made to the current LOPDGDD (LO 3/2018, December 5) by Law 11/2023, of May 8, transposing European Union directives regarding the accessibility of certain products and services, migration of highly qualified persons, taxation, and digitalization of notarial and registry actions; and by which Law 12/2011, of May 27, on civil liability for nuclear damage or damage caused by radioactive materials is amended, the procedural deadline established in Article 64.2 "in fine" is applied to this procedure.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the actions will be archived.

II

Before addressing the substance of the matter, it is appropriate to briefly respond to the alleged lack of standing of the complainant in the case presented.

Article 62 of Law 39/2015 (October 1) states the following:

"1. A complaint is understood to be the act by which any person, whether or not fulfilling a legal obligation, informs an administrative body of the existence of a certain fact that could justify the initiation of an administrative procedure ex officio."

Therefore, we find ourselves in the described case, that is, a person who reports to this agency a presumed irregularity in a matter related to the jurisdictional framework of this Agency, regardless of whether they are a resident of the locality when reporting such facts for analysis by this Agency, so the claim must be dismissed.

III

In this case, we proceed to examine the complaint dated 13/02/23, which states the following:

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"installation of cameras in public spaces that record and store data of the public without any warning" (file no. 1).

The regulation for the installation of cameras in public places or spaces is found in Organic Law 4/1997, of August 4 (Official State Gazette of the 5th), which regulates the use of video cameras by the security forces in public places; the development of which is carried out through Royal Decree 596/1999, of April 16 (Official State Gazette of the 19th), which approves the Regulation for the development and execution of that Organic Law.

According to Article 1 of Organic Law 4/1997, its purpose is to regulate the use of video cameras by the Security Forces in public places, whether open or closed, and their subsequent processing, in order to contribute to ensuring citizen coexistence and eradicating violence and the peaceful use of public roads and spaces.

For the installation and use of a recording system in public spaces, it is necessary, according to Article

3 of the aforementioned Law, to obtain authorization from the Government Delegate of each Autonomous Community, prior to a report from a Commission presided over by the President of the Superior Court of Justice of that Community, and whose resolution must be motivated and referred in each case to the specific public place in question and subject to any necessary conditions and limitations of use.

Thus, to proceed with the installation of a camera system in a area, the Mayor or Councilor of the competent security area must request the corresponding authorization from the Government Delegation, specifying the physical scope subject to control by the system, the qualifications of the persons responsible for operating the image processing system, and the period during which the recordings are intended to be made.

Article 13 of the GDPR Information that must be provided when personal data is obtained from the data subject states:

1. When personal data relating to a data subject is obtained from that data subject, the data controller shall provide all the information indicated below at the time the data is obtained:
 - a) the identity and contact details of the controller and, where applicable, of its representative;
 - b) the contact details of the data protection officer, where applicable;
 - c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
 - d) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;
 - e) the recipients or categories of recipients of the personal data, where applicable;
 - f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate or suitable safeguards and the means to obtain a copy of these or the fact that they have been provided (...).

It should also be noted that the installation and use of video surveillance systems involve the processing of personal data, so compliance with the provisions related to the Organic Law on Data Protection and Guarantee of Digital Rights (LOPDGDD) is required.

To this end, at least one informative sign must be placed in the monitored areas, located in a sufficiently visible place, both in open and closed spaces, for the purpose of fulfilling the information duty provided for in the aforementioned Article 13.

Article 22, section 4 of the LOPDGDD (LO 3/2018, December 5) states:

“The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informative device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679.”

The entire citizenry must be aware that it is a video-monitored area, the purpose of the processing, and an effective way to exercise their rights if necessary.

IV

In accordance with the “evidence” available in this sanctioning procedure, it is considered that the claimed party has a video surveillance camera system that, as of the date of this document, is not operational, according to the responsible declaration of the main authority of the same.

(...) I hereby inform again that the cameras installed by the City Council, as previously stated in a responsible declaration, the cameras placed in ***LOCALITY.1 are not operational, not allowing either vision or recording of images, as long as authorization is granted by the Government Subdelegation, a procedure that is being followed for the rest of the neighborhoods belonging to this City Council (***NEIGHBORHOOD.1, ***NEIGHBORHOOD.2, ***NEIGHBORHOOD.3, and ***NEIGHBORHOOD.4).

The reasons put forward by the claimed entity are taken into account based on the consolidated doctrine of this Agency of not tolerating acts of vandalism carried out furtively and the suitability of the cameras to at least deter those who do not wish to act in accordance with the democratic principles of coexistence.

The AEPD has widely warned about the use of deactivated cameras that can easily be made operational, as is the case described, so that the same "must be subject to the principles in force regarding the protection of personal data and the applicable sectoral regulations."

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Item, it is reminded that the viewing of images must comply with the current regulations, such that in cases of alleged unlawful acts, they must "be made available to the competent authority within a maximum period of seventy-two hours from the moment knowledge of the existence of the recording is obtained"—art. 22.3 LOPDGDD--.

V

The principle of the presumption of innocence prevents attributing an administrative infraction when no evidence has been obtained and verified that substantiates the facts motivating the accusation or the involvement of the alleged infringer in the same. Applying the principle "in dubio pro reo" in case of doubt regarding a specific and determined fact, which obliges in any case to resolve such doubt in the most favorable manner for the interested party.

The presumption of innocence must govern without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanctions, as the exercise of the *ius puniendi* in its various manifestations is conditioned on the play of evidence and a contradictory procedure in which one's own positions can be defended. In this sense, the Constitutional Court in its Judgment 76/1990, of 26/04, considers that the right to the presumption of innocence entails: "that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the result of the evidence presented, freely evaluated by the sanctioning body, must translate into an acquittal pronouncement.

The presumption of innocence governs without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanction, whether criminal or administrative (TCo 13/1981), as the exercise of the sanctioning right in any of its manifestations is conditioned on the play of evidence and a contradictory procedure in which one's own positions can be defended.

According to this principle, no sanction can be imposed based on the culpability of the accused if there is no incriminating evidence that, in the appreciation of the authorities or bodies called to resolve, destroys this presumption (TCo Auto 3-12-81).

VI

Taking into account the allegations of the main responsible party for the installation, as well as their veracity, it is considered that the video surveillance camera system is not in an state, such that the cameras do not process personal data associated with an identified or identifiable natural person, which is why it is appropriate to order the filing of the current procedure.

However, it is brought to the attention of the City Council that this body may carry out an on-site inspection at the location of the cameras in case of a new complaint, and must, as soon as it has the necessary administrative authorizations, proceed to legally inform the entire local citizenry of their presence.

Information regarding this can be found free of charge on the website of this Agency www.aepd.es Video Surveillance Guide.

Therefore, in accordance with the applicable legislation,
the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ORDER the FILING of the current procedure against the entity complained of, AYUNTAMIENTO DE TARTANEDO, with NIF P1932000A, as no infraction has been proven in the matter.

SECOND: TO NOTIFY this resolution to the entity complained of, AYUNTAMIENTO DE TARTANEDO.
In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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